



Notification Waiver Determination

UP Education – Australian Academy of Beauty Dermal & Laser

Acquisition	UP Education Australia Pty Ltd, the Australian subsidiary of New Zealand parent company UP Education HoldCo Limited (UP Education), applied for a notification waiver in respect of its proposed acquisition of Australian Academy of Beauty Dermal & Laser Pty Ltd (AABDL), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	1 June 2026

Parties to the Acquisition	The acquirer, UP Education is a tertiary education provider in Australia and New Zealand which provides higher education, vocational education and training courses and university partnerships. UP Education offers courses in various topic areas such as health, hospitality, community services, construction and creative arts. UP Education operates a group of higher education and vocational education and training providers across Australia and New Zealand, including 10 registered providers in Australia. This includes 4 providers that have campuses in New South Wales (including online courses), with 3 providers located in Sydney. UP Education also delivers online qualifications nationally through several providers, including to students in NSW. UP Education is owned and operated by funds managed and/or advised by Pacific Equity Partners. The target, AABDL, is an Australian tertiary education provider providing beauty, laser and dermal training courses to approximately 487 students. It has four campuses in NSW (Bella Vista, North Strathfield, Rockdale and Sydney CBD).
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:

	a. there is no horizontal overlap between UP Education and AABDL in the supply of beauty or salon management training services b. whilst there is a horizontal overlap between UP Education and AABDL in the supply of tertiary education services in NSW and nationally, the increase in share of supply arising from the Acquisition would be very small c. there are several alternative suppliers of beauty or salon management training services to customers in NSW d. other than UP Education, there is no horizontal overlap between Pacific Equity Partners' investments and AABDL in the supply of tertiary education services. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act